Slide 1 Montesquieu and the three powers

Approximate elapsed time 0:00-0:50 | Stage 1: the author and his problem

Read the full prose. Bracketed cues are silent. Total target about 9 minutes.

Thank you, Serge, and thank you, Arno. My name is Ana Vitória Vanzin Mendes. I am a doctoral researcher in law at the Federal University of Santa Catarina.

For this discussion, I would like to connect Montesquieu's account of political liberty with a question about images: how do Brazilian legal images represent the three powers, and what can they tell us about autonomy and independence?

I will begin with Montesquieu himself, then turn to Brazil and the images of its institutions. Finally, I will put one question to Serge about the conditions that make political liberty possible.

[Pause. CHANGE TO SLIDE 2.]

Slide 2 Who was Montesquieu

Approximate elapsed time 0:50-2:05

Montesquieu was Charles-Louis de Secondat, a French magistrate and political thinker who lived from 1689 to 1755. He served in the Parlement of Bordeaux, which was a court, not a parliament in the modern legislative sense.

His major work, The Spirit of the Laws, appeared in 1748. It asks how laws relate to different forms of government and to the circumstances of a society: its customs, religion, commerce, geography and history.

That matters because Montesquieu gives us more than a diagram of government. He asks how power operates, what restrains it, and under what conditions people can live without fearing its arbitrary exercise.

Political liberty, in this account, does not mean that everyone can simply do whatever they want. It requires security under laws and limits on the people who exercise public power. The distribution of powers is one essential part of that problem.

[CHANGE TO SLIDE 3.]

Slide 3 Three powers, limits on power

Approximate elapsed time 2:05-3:35

In Book Eleven, chapter six, Montesquieu distinguishes three kinds of power. In familiar terms, these are legislative, executive and judicial: making laws, conducting government, and judging crimes and disputes.

His concern is what happens when these functions are concentrated. If the same authority makes the laws and executes them, it can make oppressive laws and then enforce them. If judging is joined to legislation, the judge can become the lawmaker. If it is joined to executive power, judging can acquire the force of an oppressor.

Separating these functions therefore helps protect liberty. But separation should not be understood as three institutions with no relationship to one another. The question is how their arrangements prevent an unchecked accumulation of power.

There is also a historical distance to keep in mind. Montesquieu's account of judging is not a description of today's permanent constitutional courts. When we look at a modern image of judicial independence, we are examining a later institutional world. We should not assume that it simply reproduces his model.

[Pause. CHANGE TO SLIDE 4.]

Slide 4 Montesquieu in Brazil 1824

Approximate elapsed time 3:35-4:45 | Stage 2: institutions and their images

Brazil makes that historical distance particularly clear. As Serge explains in his text, Montesquieu's work circulated in Brazil before independence and was discussed during the constitutional debates of 1823.

Yet the Constitution of 1824 recognised four powers: Legislative, Moderating, Executive and Judicial. Article ten names them explicitly. The Moderating Power belonged to the emperor, and this arrangement drew on Benjamin Constant's model.

So reception involved choices and adaptation. The fourth power was not another branch invented by Montesquieu. Brazilian constitutional actors were working with several sources and with the political circumstances of an independent monarchy.

That is the background I want to keep in view when turning to images. A familiar idea about power can acquire a different institutional form. An image, too, needs to be understood in the particular setting in which it was made and used.

[CHANGE TO SLIDE 5.]

Slide 5 Representing distinct and related institutions

Approximate elapsed time 4:45-6:15

How, then, can an image represent the relationship between powers?

Consider Aurélio de Figueiredo's Compromisso Constitucional, painted in 1896. It represents Deodoro da Fonseca taking his constitutional oath in 1891. The date of the painting and the date of the event are different.

Here, executive authority appears in a scene involving a constitutional commitment and the Constituent Congress. Deodoro holds the book, while Prudente de Moraes presides over the Congress. We see different offices brought into a shared ceremony.

The constitutional text gives us a point of comparison. Article fifteen of the Constitution of 1891 described the Legislative, Executive and Judicial powers as harmonious and independent of one another. Article forty-four required the president to promise to uphold the Constitution.

My reading of the painting is that it makes authority under an obligation visible. The executive does not appear alone: the book and the assembly help define the relationship being represented.

But this is an interpretation of the image. The ceremony cannot establish that those institutions were independent in practice, and the painting does not by itself prove direct influence from Montesquieu.

[Give the audience a moment to look. CHANGE TO SLIDE 6.]

Slide 6 Ceschiatti's Justice the sword and autonomy

Approximate elapsed time 6:15-8:20

The judicial example is Alfredo Ceschiatti's A Justiça, from 1961, in front of the Supreme Federal Court in Brasília.

The seated figure holds a sword across her lap. Her position before the court identifies her with a particular institution. The setting matters: this is the Praça dos Três Poderes, where the Supreme Court, Congress and the presidential palace occupy distinct buildings within a common civic space.

Arno suggested that we consider the sword as a sign of judicial autonomy and independence. I would treat that as a hypothesis about this sculpture in this place, rather than as the universal meaning of a sword.

The sword can evoke the force associated with justice. Here, however, it is at rest, held by Justice herself. Rafael Simioni, in his study of Ceschiatti's sculpture, develops an interpretation in terms of autonomy. That gives us a way to discuss the image's claim to judicial authority.

We still need to distinguish that claim from the institution's actual position. A sword cannot tell us whether judges are protected from interference, whether their decisions can be enforced, or how the court relates to the other powers.

The distinction is important for Montesquieu's question about liberty. An image can make institutional independence visible as an ideal. Whether that ideal is sustained depends on the laws and practices through which public power is exercised.

[Pause. CHANGE TO SLIDE 7.]

Slide 7 A question for Serge

Approximate elapsed time 8:20-9:20 | Stage 3: the discussion

This brings me to a point in Serge's text that I would like to open for discussion. He cautions against reducing Montesquieu to a constitutional formula for separating powers. He draws attention to the civil and criminal laws, and especially the judicial institutions, that must support political liberty.

The images help us see why that distinction matters. A constitutional oath represents an obligation. Justice before a court represents an authority. Both invite us to ask how the relationship they display is sustained beyond the image itself.

So, Serge, my question is: when Montesquieu is read primarily through the separation of powers, what is lost from his account of political liberty?

Thank you.

[STOP. Look up. Leave the question on screen.]